M/S Maithon Power Ltd vs West Bengal Electricity Regulatory ... on 1 March, 2017

COURT-I

IN THE APPELLATE TRIBUNAL FOR ELECTRICITY
(Appellate Jurisdiction)

APPEAL NO. 190 of 2015 and IA No. 324 of 2015 &
IA Nos. 87 & 180 of 2017
&
APPEAL NO. 272 of 2015 and IA No. 440 of 2015 &
IA Nos.86 & 181 of 2017

Dated: 1st March, 2017

Present: Hon'ble Mrs. Justice Ranjana P. Desai, Chairperson
Hon'ble Mr.I. J. Kapoor, Technical Member

In the matter of :

APPEAL NO. 190 of 2015 and IA No. 324 of 2015 &
IA Nos. 87 & 180 of 2017

M/s Maithon Power Ltd. ... Appellant(s)
Vs.
West Bengal Electricity Regulatory Commission & Anr. ... Respondent(s)

Counsel for the Appellant(s) : Mr. Amit Kapur
Mr. Vishal Anand

Counsel for the Respondent(s) : Mr. Pratik Dhar, Sr. Adv.
Mr. C.K.Rai
Mr. Umesh Prasad for R.1
Ms.Poorva Saigal for R.2

APPEAL NO. 272 of 2015 and IA No. 440 of 2015 &
IA Nos.86 & 181 of 2017

M/s Maithon Power Ltd. ... Appellant(s)
Vs.
Jharkhand State Electricity Regulatory Commission & Anr.... Respondent(s)

Counsel for the Appellant(s) : Mr. Amit Kapur
Mr. Vishal Anand

Counsel for the Respondent(s) : Ms.Poorva Saigal for R.2

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ORDER

Learned counsel for the Appellant and learned counsel for Respondent No.2 state that these matters are settled between the parties. A joint application to that effect has been filed by Appellant and Respondent No.2 praying that this Tribunal should permit the Appellant to withdraw these appeals in the light of the settled terms. The settlement is reflected in two documents being PPA dated 24.01.2017 for 18.5 MW and supplementary PPA dated 24.01.2017 continuing the old PPA for 150 MW, which are placed on record at page Nos. 15 to 17 of I.A. Nos. 180 & 181 of 2017. It also needs to be recorded that Respondent No.2 has withdrawn letter dated 02.02.2017 seeking to surrender the balance 150 MW, substituting it by the supplementary PPA.

In view of the above settlement, the appeals are allowed to be withdrawn and are disposed of as such. . The questions of law involved in these appeals are kept open. Consequently, all the pending IAs are disposed of.

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  (I. J. Kapoor)                          (Justice Ranjana P. Desai)
Technical Member                                  Chairperson
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